

MASTER SERVICES AGREEMENT

This MASTER SERVICES AGREEMENT (this "Agreement") is made and entered into as of [Effective Date] (the "Effective Date"), by and between [Company Name], a [State] [Entity Type] ("Company"), and [Service Provider Name], a [State] [Entity Type] ("Provider").

WHEREAS, Company desires to engage Provider for certain professional services; and

WHEREAS, Provider desires to perform such services under the terms and conditions set forth herein;

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein, the parties agree as follows:

ARTICLE I DEFINITIONS

1.1 "Deliverables" means all reports, work product, documents, materials, and other items created for Company under this Agreement.

1.2 "Services" means the professional services described in one or more Statements of Work entered into by the parties.

ARTICLE II SERVICES

2.1 Provider shall perform the Services in a professional and workmanlike manner.

2.2 Provider shall devote reasonable time and attention as necessary to perform the Services.

ARTICLE III FEES AND PAYMENT

3.1 Company shall pay Provider the fees set forth in the applicable Statement of Work.

3.2 Unless otherwise stated in a Statement of Work, Provider shall invoice monthly and Company shall pay undisputed amounts within thirty (30) days after receipt.

ARTICLE IV CONFIDENTIALITY

4.1 Each party acknowledges that it may receive non-public information from the other party and agrees to protect such information from unauthorized use and disclosure.

4.2 The obligations of this Article IV shall survive termination of this Agreement for a period of three (3) years.

ARTICLE V TERM AND TERMINATION

5.1 This Agreement begins on the Effective Date and continues until terminated as provided herein.

5.2 Either party may terminate this Agreement for material breach if such breach remains uncured for thirty (30) days following written notice.

ARTICLE VI MISCELLANEOUS

6.1 This Agreement shall be governed by the laws of the State of California, excluding its conflict-of-law principles.

6.2 This Agreement constitutes the entire agreement of the parties with respect to the subject matter hereof and supersedes all prior agreements.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

[COMPANY NAME]

By: _____ Name: Title:

[SERVICE PROVIDER NAME]

By: _____ Name: Title: